

United Kingdom 2023 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in the United Kingdom during the year.

Significant human rights issues included credible reports of: crimes, violence, or threats of violence motivated by antisemitism; and crimes involving violence or threats of violence targeting lesbian, gay, bisexual, transgender, queer, or intersex persons.

The government took credible steps to identify and punish officials who may have committed human rights abuses.

Section 1. Respect for the Integrity of the Person

a. Arbitrary Deprivation of Life and Other Unlawful or Politically Motivated Killings

There were no reports the government or its agents committed arbitrary or unlawful killings, including extrajudicial killings. The Independent Office for Police Conduct (IOPC) investigated the most serious and sensitive incidents and allegations involving the police. It considered whether police shootings were justifiable, investigated serious injury or death in police custody, and

allegations of excessive force. If appropriate, it passed cases to the Crown Prosecution Service (CPS) to pursue prosecution. In September the CPS announced the police officer who fatally shot an unarmed Black man, Chris Kaba, in South London in 2022 would be charged with murder.

b. Disappearance

There were no reports of disappearances by or on behalf of government authorities.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment, and Other Related Abuses

The law prohibited such practices, and there were no credible reports that government officials employed them.

Prison and Detention Center Conditions

Prison and detention center were overcrowded, with limited purposeful activities for detainees, low quality healthcare, and minimal rehabilitation opportunities. Violence among inmates occurred.

Abusive Physical Conditions: Overcrowding, prolonged confinement of prisoners in cells without an opportunity for movement or exercise, and lack of purposeful activities for detainees were significant problems. On October 13, the prison population reached its highest ever reported level of over

88,000 prisoners, leaving the system 560 spaces away from full capacity. To free up more space, the government announced on October 16 it would pursue justice reforms aimed at addressing overcrowding, including jailing fewer low-level offenders and removing more foreign prisoners.

In his annual report published in July, the chief inspector of prisons stated that in many of the facilities visited, prisoners were locked up without activity for long periods of time. The inspector found there were low quality and limited purposeful activities for detainees in all but one prison inspected. He reported poor treatment of women in prison suffering from extreme mental health difficulties and noted violence remained a significant issue for youth in custody.

On October 17, the chief inspector of prisons published a report into His Majesty's Prison (HMP) Bristol, which he described as "categorically failing." He also condemned the "appalling state" of the prison, and said it was "one of the most unsafe in the country." The prison's normal capacity was 408, but it held more than 540 inmates at the time it was inspected in July with prisoners locked in cells 22 hours a day. Eight prisoners took their lives since the jail was inspected in 2019, and one since the prison was inspected in July. One prisoner was charged with murdering his cell mate.

In July an Irish judge blocked the extradition of Richard Sharples, a man wanted over firearm offenses alleged to have taken place in Glasgow in 2021, because Sharples would face a "real and substantial risk of inhumane

or degrading treatment” in the Scottish prison system. The Irish judge noted that due to overcrowding at the two facilities Sharples would be placed – HMP Barlinnie or HMP Low Moss – he would likely be kept in a cell for 22 hours per day with limited space for movement. In August the governor of HMP Barlinnie warned in a BBC Scotland interview that the facility was so overcrowded and outdated that it could suffer a “catastrophic failure” at any time.

As of mid-December, the reinspection report had not yet been published.

Administration: Authorities conducted investigations of credible allegations of mistreatment.

Independent Monitoring: In England, Wales, Northern Ireland, and the 14 British Overseas Territories, the government permitted monitoring by independent nongovernmental observers. Every prison, immigration removal center, and some short-term holding facilities at airports had an independent monitoring board. Each board’s members were required to monitor day-to-day activity in the facility and ensured proper standards of care and decency. Members had unrestricted access to the facility at any time and could talk to any prisoner or detainee they wished, out of sight and hearing of staff, if necessary.

Scotland operated the Independent Prison Monitoring system. The HM Chief Inspector of Prisons for Scotland had overall responsibility for

monitoring Scottish prisons. The government permitted monitoring by independent nongovernmental observers in Scotland.

d. Arbitrary Arrest or Detention

The law prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court. The government generally observed these requirements.

Police in England and Wales had powers to stop and search anyone if they had “reasonable grounds” to suspect the individual could be in possession of drugs, weapons, stolen property, or any item that could be used to commit a crime. In Scotland guidelines allowed police to stop and search persons only when police had “reasonable grounds,” a refinement after criticism that stop-and-search was being used to target specific racial groups.

In Northern Ireland, the law permitted police officers to stop and search members of the public. In most circumstances a police officer needed grounds to search an individual. Some stop-and-search powers allowed individuals to be searched without grounds. By law persons living in the 14 overseas territories, including Bermuda, were generally ensured the same rights and protections against arbitrary arrest and detentions, with slight variations in each of the jurisdictions.

Arrest Procedures and Treatment of Detainees

Police nationally were required to have a warrant issued by a magistrate or a judge to arrest a person unless there was reasonable suspicion a person had just committed or was about to commit a crime. In England, Wales, and Northern Ireland, a senior police official could authorize detention without charges for more than 24 hours, and a magistrate could authorize detention for more than 36 hours up to a maximum of 96 hours. Police could detain terrorism suspects without charge for up to 14 days. Police were required to inform detainees promptly of charges against them. The court could extend pretrial detention in exceptional cases. Authorities respected these rights.

In Scotland police could detain a suspect for no more than 24 hours. After an initial detention period of 12 hours, a police custody officer could authorize further detention for an additional 12 hours without authorization from the court if the officer believed it was necessary. Only a judge could issue a warrant for arrest if they believed there was sufficient evidence against a suspect. A suspect was required to be informed immediately of allegations against him or her and be advised promptly of the charges if there was sufficient evidence to proceed. Authorities respected this right. Depending on the nature of the crime, a suspect could be released from custody if they were deemed not to present a risk.

There was a functioning bail system throughout the United Kingdom and the

14 overseas territories but defendants could be denied bail if they were judged to be flight risks, likely to commit another offense, were suspected terrorists, or for other limited reasons.

If questioned at a police station, all suspects in the country had the right to legal representation, including counsel provided by the government if they were indigent. Police could not question suspects who requested legal advice until a lawyer was present. In Gibraltar the Duty Legal Representative Scheme provided free legal representation to anyone in Gibraltar police custody earning less than £14,000 (\$17,080) per year, the minimum wage. All law firms in Gibraltar with five or more lawyers were required to register as part of the scheme.

In Bermuda a court was required to issue a warrant for an arrest to proceed. The law permitted arrests without warrant only in certain conditions. When a police officer had reasonable grounds for suspecting that any offense that was not an arrestable offense had been or was being committed or attempted, they could arrest the relevant person if it appeared that service of a summons was impracticable. No arrests or detentions could be made arbitrarily or secretly, and the detainee was required to be told the reason for the arrest immediately. Individuals could be detained initially for six hours, and for two further periods of up to nine hours each, subject to review and justification. Authorities respected this right.

There was a functioning bail system in Bermuda. House arrest and wearing

an electronic monitoring device could be a condition of bail. A detainee had an immediate right of access to a lawyer, either through a personal meeting or by telephone. Free legal advice was provided for detainees. Police were required to inform the arrestee of their rights to communication with a friend, family member, or other person identified by the detainee. The police superintendent could authorize incommunicado detention for serious crimes such as terrorism.

e. Denial of Fair Public Trial

The law provided for an independent judiciary, and the government respected judicial independence and impartiality.

Trial Procedures

The law provided for the right to a fair, timely, and public trial, and an independent judiciary generally enforced this right. Under the Official Secrets Act a judge could order the court closed, but sentencing was required to be public.

In Bermuda the law required defendants to declare to the prosecutor and the court within 28 days of their arraignment whether they intended to give evidence at their trial. Failure to do so permitted the court to direct the jury to draw inferences from the defendant's refusal to testify.

Political Prisoners and Detainees

There were no reports of political prisoners or detainees.

f. Transnational Repression

Not applicable.

g. Property Seizure and Restitution

The government had laws and mechanisms in place, and nongovernmental organizations (NGOs) and advocacy groups reported that the government made significant progress on resolution of Holocaust-era claims, including for foreign citizens.

The Department of State's *Justice for Uncompensated Survivors Today (JUST) Act Report* to Congress, released publicly in July 2020, can be found on the Department's website at: <https://www.state.gov/reports/just-act-report-to-congress/>.

h. Arbitrary or Unlawful Interference with Privacy, Family, Home, or Correspondence

The law prohibited such actions, and there were no reports that the government failed to respect these prohibitions.

Section 2. Respect for Civil Liberties

a. Freedom of Expression, Including for Members of the Press and Other Media

The law provided for freedom of expression, including for members of the press and other media, and the government generally respected this right. An independent press, an effective judiciary, and a functioning democratic political system combined to promote freedom of expression, including for media members.

Freedom of Expression: The law prohibited expressions of hatred toward persons because of their color, race, nationality (including citizenship), ethnic or national origin, religion, or sexual orientation as well as any communication that was deemed threatening or abusive and was intended to harass, alarm, or distress a person. The penalties for such expressions included fines, imprisonment, or both.

Censorship or Content Restrictions for Members of the Press and Other Media, Including Online Media: The law's restrictions on expressions of hatred applied to the print and broadcast media.

Libel/Slander Laws: In the British Virgin Islands, the law criminalized "sending offensive messages through a computer" with imprisonment for up to 14 years and a fine. The law applied to a message that was "grossly

offensive” or had “menacing character” or that was sent “for the purpose of causing annoyance or inconvenience.” Media freedom NGOs strongly criticized the law.

Internet Freedom

The government did not restrict or disrupt access to the internet or censor online content, and there were no credible reports that the government monitored private online communications without appropriate legal authority. The country had no blanket laws covering internet blocking, but the courts issued blocking injunctions against various categories of content such as depictions of child sexual abuse, promotion of violent extremism and terrorism, and materials infringing on copyrights.

By law the electronic surveillance powers of the country’s intelligence community and police allowed authorities to check internet communications records as part of an investigation without a warrant.

b. Freedoms of Peaceful Assembly and Association

The law provided for the freedom of peaceful assembly and association, and the government generally respected these rights.

c. Freedom of Religion

See the Department of State’s *International Religious Freedom Report* at

<https://www.state.gov/religiousfreedomreport/>.

d. Freedom of Movement and the Right to Leave the Country

The law provided for freedom of internal movement, foreign travel, emigration, and repatriation, and the government respected these rights.

In-country Movement: The home secretary could impose terrorism prevention and investigation measures (TPIMs) based on a “balance of probabilities.” TPIMs were a form of house arrest applied for up to two years to those believed to pose a terrorist threat but who could not be prosecuted or deported. The 14 measures included electronic tagging, reporting regularly to police, and facing “tightly defined exclusion from particular places and the prevention of travel overseas.” A suspect was required to live at home and remain there overnight, potentially for up to 10 hours daily. Authorities could send suspects to live up to 200 miles from their normal residence. The suspect could apply to the courts to stay elsewhere. The suspect could use a mobile phone and the internet to work and study, subject to conditions.

Exile: The law permitted the home secretary to impose temporary exclusion orders (TEOs) on returning United Kingdom (UK) citizens or legal residents if the home secretary reasonably suspected the individual in question was involved in terrorism-related activity and considered the exclusion necessary

to protect individuals in the UK from a risk of terrorism. TEOs imposed certain obligations on the repatriates, such as periodic reporting to police. The measure required a court order and was subject to judicial oversight and appeal.

Citizenship: The law allowed the home secretary to deprive an individual of citizenship if officials were satisfied it was “conducive to the public good,” but not if doing so would render a citizen stateless. A woman who left the UK for Syria as a teenager to join the Islamic State group challenged the UK government’s decision to remove her British citizenship. Shamima Begum was stripped of her citizenship in 2019. In 2020 a tribunal upheld the decision as lawful, and in 2021 the country’s highest court, the Supreme Court, ruled Begum could not return to the country to appeal the decision. In February Begum lost the appeal against the removal of her British citizenship. In October, however, Begum’s lawyers returned to the court of appeal, arguing it was unlawful to deprive her of British citizenship because the Home Office failed to consider that she was a victim of grooming and human trafficking. A legal decision was pending as of mid-December.

e. Protection of Refugees

The government cooperated with the Office of the UN High Commission for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers,

as well as other persons of concern.

Access to Asylum: In England, Scotland, Wales, and Northern Ireland, the law provided for granting asylum or refugee status, and the government had established a system for providing protection to refugees. Asylum was a matter reserved for the national government and was handled centrally by the Home Office, including for most overseas territories. Bermuda's constitution and laws did not provide for granting asylum or refugee status, and the government did not have an established system for providing protection to refugees.

On May 26, in its published comprehensive audit of the country's asylum intake, registration, and screening procedures, UNHCR stated that the UK's "flawed and inefficient screening procedures" were undermining the country's asylum capacity, placing vulnerable persons at risk and adding to the pressure on public resources.

UNHCR reiterated its "longstanding and well-known concerns" over the government's plan to transfer asylum seekers from the UK to Rwanda, which it previously stated did not comply with the UK's obligations. In June the Court of Appeal ruled that the government's plan to transfer asylum seekers to Rwanda was unlawful, reversing a December 2022 High Court decision. On November 15, the UK Supreme Court upheld the Court of Appeal's ruling that the government's plan to have asylum seekers sent to Rwanda was unlawful. The court found that there were substantial grounds

for believing that asylum seekers sent to Rwanda would face a risk of ill-treatment because of refoulement. Following the judgment, Prime Minister Rishi Sunak stated the government would pursue a new treaty with Rwanda and emergency legislation to “stop the government’s policy from being repeatedly blocked.” As of year’s end, no persons had been sent to Rwanda amid ongoing legal challenges.

On July 20, the Illegal Migration Bill received royal assent and became law. The government asserted the law would help prevent illegal migration by removing the incentive to make dangerous small boat crossings from France via the English Channel; would speed up removals; and would prevent individuals who traveled to the UK through illegal and dangerous methods from misusing safeguards intended to combat human trafficking to block their removal from the country.

Civil society and media criticized the government’s handling of asylum seekers. NGOs and the Office for Statistics Regulation asserted the government had not provided evidence of “abuse” of the system and needed to ensure that the country supported those in genuine need by committing to resettle a specific number of the most vulnerable refugees in the country each year. UNHCR criticized the new migration law for being “at variance” with the country’s human rights and refugee obligations and asserted it would have “profound consequences for people in need of international protection.” UNHCR stated the law “extinguishes access to

asylum in the UK for anyone who arrives irregularly, having passed through a country – however briefly – where they did not face persecution,” and noted that it also created sweeping new detention powers, with limited judicial oversight. Experts asserted the new law put victims of trafficking at risk of deportation and exclusion from protection or support.

Temporary Protection: The government provided temporary protection to approximately 950 individuals who would likely not have qualified as refugees.

f. Status and Treatment of Internally Displaced Persons (IDPs)

Not applicable.

g. Stateless Persons

There were an estimated 5,500 stateless persons who resided in the country. The government provided a route to legal residence for up to five years for stateless persons resident in the country. After the initial five-year period, stateless persons could apply for “settled status” or further extension of their residency. The government did not publish data on the number of habitual residents who were legally stateless. The law allowed for the acquisition of citizenship for persons who were stateless.

Section 3. Freedom to Participate in the Political Process

The law provided citizens the ability to choose their government in free and fair periodic elections held by secret ballot and based on universal and equal suffrage.

Elections and Political Participation

Abuses or Irregularities in Recent Elections: UK general parliamentary elections were held in 2019. Bermuda held elections to the House of Assembly in 2020. Elections to the Northern Ireland Assembly were held in May 2022. National elections were widely reported to be fair and free of abuses and irregularities in all jurisdictions. Independent observers reported no abuses or irregularities in any of the elections.

Section 4. Corruption in Government

The law provided criminal penalties for corruption by officials, and the government implemented the law effectively. There were no reports of government corruption.

Section 5. Governmental Posture Towards International and Nongovernmental Monitoring and

Investigation of Alleged Abuses of Human Rights

A wide variety of domestic and international human rights groups operated without government restriction to monitor or investigate human rights conditions or cases and publish their findings. Government officials were often cooperative and responsive to the views of these groups.

Government Human Rights Bodies: Parliament had a Joint Committee on Human Rights composed of 12 members selected from the House of Lords and the House of Commons. The committee investigated human rights matters in the country and scrutinized legislation affecting human rights. It could call for testimony from government officials, who routinely complied.

The Equality and Human Rights Commission (EHRC) operated as an independent, nondepartmental public body that promoted and monitored human rights and protected, enforced, and promoted equality across nine “protected” grounds: age, disability, gender, race, religion and belief, pregnancy and maternity, marriage and civil partnership, sexual orientation, and gender reassignment. The sponsoring department was the Government Equalities Office. The commission was considered effective.

In Scotland the Scottish Human Rights Commission, which was accountable to the Scottish Parliament, monitored and protected human rights. The commission was considered effective.

The Northern Ireland Human Rights Commission, sponsored by the Northern Ireland Office, and the Equality Commission for Northern Ireland, sponsored by the Office of the First Minister and Deputy First Minister, monitored human rights in that province. Both entities were considered effective.

The Bermuda Human Rights Commission was an independent body that effectively administered human rights law through the investigation and resolution of complaints lodged with it and provided services to resolve individual complaints involving human rights, sexual harassment, and disability, promoted knowledge of human rights in Bermuda, and helped to reduce barriers to equality in employment and access to service.

Other British Overseas Territories, including the Cayman Islands and Turks and Caicos, also had independent commissions aimed at promoting, protecting, and preserving human rights.

Section 6. Discrimination and Societal Abuses

Women

Rape and Domestic Violence: The law criminalized rape of a person, regardless of gender, including spousal and domestic or intimate partner rape and other forms of domestic and sexual violence including so-called corrective rape of lesbian, gay, bisexual, transexual, queer, or intersex (LGBTQI+) persons. The maximum legal penalty for rape was life

imprisonment. The law also provided for injunctive relief, personal protection orders, and protective exclusion orders (similar to restraining orders) for survivors of gender-based violence. The government enforced the law effectively in reported cases. Courts in some cases imposed the maximum punishment for rape. The government provided shelters, counseling, and other assistance for survivors of rape or violence. NGOs asserted police and CPS raised the bar for evidence needed, causing survivors to drop out of the justice process. The CPS was in the fourth year of a five-year plan for the prosecution of rape and serious sexual offenses (RASSO) to help reduce the gap between reported cases and prosecutions, improve cooperation between police and prosecutors, fully resource RASSO units, and provide training to improve communication with victims. In July the CPS launched a new national operating model in England and Wales that established a standardized approach for how all adult rape cases were handled. The new approach included offering early advice to police in each rape or serious sexual assault case within 21 days, increased scrutiny of CPS and police decision making, and dedicated victim liaison officers as a single point of contact for survivors.

According to data published by the Scottish government, in Scotland, juries returned verdicts of acquittal at a significantly higher rate for sexual offenses than for other crimes, with conviction rate data for the past 10 years showing that the average rate of conviction for attempted rape was 46 percent versus 88 percent for all offenses.

The law criminalized domestic violence. Those who abused spouses, partners, or family members faced tougher punishment than those who committed similar offenses in a nondomestic context.

In January the Home Office committed up to £18 million (\$22 million) per year over two years to the Domestic Abuse Perpetrator Intervention Fund, bringing the total fund to £36 million (\$43.9 million). The fund allowed police forces to intervene early and work with perpetrators to change their behavior and reduce the risk they pose to victims. On July 25, the government granted up to £8.3 million (\$10.1 million) to 55 organizations supporting victims of abuse, for counseling, training, and community outreach. On July 7, a coalition of 11 women's sector organizations launched a petition and called for additional funding for community-based domestic services. The petition noted that financial pressure meant frontline service providers were finding it harder to meet the rising demand for support.

Female Genital Mutilation/Cutting (FGM/C): The law prohibited FGM/C and required health and social care professionals and teachers to report to police cases of FGM/C on girls younger than age 18. It was illegal to take a British national or permanent resident abroad for FGM/C or to help someone trying to do so. The penalty was up to 14 years in prison. An FGM/C protection order, a civil measure that could be applied for through a family court, offered the means of protecting survivors or at-risk women and

girls from FGM/C under the civil law. Breach of an FGM/C protection order was a criminal offense and carried a sentence of up to five years in prison.

FGM/C was illegally practiced in the country, particularly within some diaspora communities from countries where FGM/C was prevalent.

The government took nonjudicial steps to address FGM/C, including awareness-raising efforts, a hotline, and requiring medical professionals to report FGM/C observed on patients. In October a British woman was found guilty of assisting another person, in Kenya, carry out FGM on a British minor in 2006.

Discrimination: The law provided the same legal status and rights for women and men including under family, religious, personal status, and nationality laws as well as laws related to labor, property, inheritance, employment, access to credit, and owning or managing businesses or property. The government enforced the law effectively.

Reproductive Rights: There were no reports of coerced abortion or involuntary sterilization on the part of government authorities. The government provided access to sexual and reproductive health services for survivors of sexual violence. Emergency contraception and postexposure prophylaxis were available as part of the clinical management of rape. Health policy was devolved to constituent parts of the country.

Systemic Racial or Ethnic Violence and Discrimination

The law prohibited racial and ethnic discrimination, but travelers, Roma, and persons of African, Afro-Caribbean, South Asian, and Middle Eastern origin reported mistreatment on racial or ethnic grounds. The government effectively enforced the law.

Ethnic minorities were significantly overrepresented in prisons. Nearly one-third of the prison population identified as an ethnic minority.

In Scotland racial or other discriminatory motivation could be considered an “aggravating factor” in crimes. Race-based hate crime slightly increased from the previous year and was the most reported type of hate crime committed in Scotland.

“Right to Rent” laws required all landlords in England to check that all tenants who occupied their properties had legal status to live in the UK. Tenancies in Scotland, Wales and Northern Ireland were not subject to right to rent checks. Landlords could be fined or face a prison term for noncompliance. Activists claimed “Right to Rent” laws were a form of discrimination and asserted they caused homelessness.

Children

Child Abuse: There were laws against child abuse, and the government enforced them effectively. The abuse of children was punishable by up to a

maximum sentence of 14 years' imprisonment. Social service departments in each local authority in the country maintained confidential child protection registers containing details of children at risk of physical, emotional, or sexual abuse or neglect. The registers also included child protection plans for each child.

Child, Early, and Forced Marriage: The minimum legal age for marriage was 16. In England, Northern Ireland, and Wales, persons younger than 18 required the written consent of parents or guardians, and the underage person was required to present a birth certificate. The legal minimum age for marriage in Scotland was 16 and did not require parental consent. The legal minimum age for marriage was effectively enforced by the government.

Forcing someone to marry against their will was a criminal offense throughout the country with a maximum prison sentence of seven years. Forcing a UK citizen into marriage anywhere in the world was a criminal offense in England and Wales. The government operated a public helpline to provide advice and support to victims of forced marriage. The government offered lifelong anonymity for victims of forced marriage to encourage more to come forward.

Sexual Exploitation of Children: The law prohibited the sale, grooming, or use of children for commercial sexual exploitation, including sex trafficking. The penalties for sexual offenses against children and the commercial sexual

exploitation of children ranged up to life imprisonment. The law prohibited child pornography and other forms of online child sexual exploitation and abuse. Authorities enforced the law. The minimum age of consensual sex was 16.

Antisemitism

The 2021 census recorded the Jewish population at approximately 271,000. There were credible reports of crimes, violence, and threats of violence motivated by antisemitism.

Between the October 7 Hamas terrorist attack on Israel and November 22, the NGO Community Security Trust (CST) recorded at least 1,563 antisemitic incidents across the UK. The CST compared this figure with the same period in 2022, when 242 incidents were recorded, an increase of 546 percent. The 1,563 incidents reported included 70 assaults and 130 direct threats.

On December 7, a Jewish woman was assaulted and robbed by two young women in North London. The attackers reportedly kicked the unconscious victim in the head and laughed that she was “dead,” according to the Stamford Hill Shomrim neighborhood watch group. On December 10, police arrested two teenage girls on suspicion of robbery, but later released them while the case remained under investigation. Police reported “The victim is from the orthodox Jewish community. It would have been obvious from her appearance that she was Jewish and there has been significant concern that

she was targeted for that reason.” As of December 14, the investigation remained ongoing.

On December 5, an emeritus professor of the University of Bristol and the University of the West of England retweeted a post about the Jewish Labour Movement’s (JLM) national One Day Conference, commenting that somebody should “blow up” the venue. Following the post, the JLM wrote to the University of Bristol urging the institution to “send a powerful message about the lack of tolerance the faculty has for such hateful, highly dangerous, and inflammatory behavior.” On December 8, the University of Bristol said it was “deeply dismayed” by the comment and withdrew the professor’s honorary emeritus title with immediate effect. The professor subsequently apologized and said her remark was “made as a joke.” Avon and Somerset Police said they were investigating the post as “an incident of malicious communication.” As of December 14, the investigation was ongoing.

For further information on incidents of antisemitism in the country, whether or not those incidents were motivated by religion, and for reporting on the ability of Jews to exercise freedom of religion or belief, please see the Department of State’s *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acts of Violence, Criminalization, and Other Abuses Based on Sexual Orientation, Gender Identity or Expression, or Sex Characteristics

Criminalization: Laws in the UK did not criminalize consensual same-sex sexual conduct between adults, cross-dressing, or other sexual or gender characteristic-related behaviors. Facially neutral laws, such as laws on immorality or loitering, were not disproportionately applied to LGBTQI+ persons.

Violence and Harassment: Crimes involving violence or threats targeting LGBTQI+ persons were a significant human rights concern. Police and other government agents did not incite, perpetrate, condone, or tolerate violence against LGBTQI+ individuals. LGBTQI+ NGO Galop reported that demand for hate crime support services increased during the year by 65 percent. Home Office official figures reported a 6 percent drop in sexual orientation hate crimes, but an 11 percent increase in transgender hate crimes. NGOs asserted this increase coincided with a decrease in government support and the growth of divisive and demonizing rhetoric about trans persons in

society. LGBTQI+ NGOs reported most victims did not report violence against them to the police.

On February 11, Brianna Ghey, an age 16 British transgender girl, was found dead with multiple stab wounds in a park in Culceth, Warrington. Police arrested two teenage suspects on February 15, and charged them with murder. Both suspects were denied bail and placed in youth detention pending resolution of their trial, which began on November 27.

On August 13, two men were stabbed outside an LGBTQI+ nightclub in South London. On September 7, the police arrested a youth age 19 on suspicion of two counts of grievous bodily harm. Mayor of London Sadiq Khan called the double stabbing “abhorrent” and voiced his support for the LGBTQI+ community. As of December 14, the case remained pending.

Discrimination: The law prohibited discrimination by state and nonstate actors based on sexual orientation, gender identity or expression, or sex characteristics and recognized LGBTQI+ individuals, couples, and their families. The government generally enforced such laws, although there were reports of discrimination based on sexual orientation or gender identity against LGBTQI+ persons. Observers reported individuals identifying as LGBTQI+ were more likely to experience worse health outcomes than the general population, found it harder to access services, and had poorer experiences of using services when they were able to access them.

In October, 246 NGOs submitted a letter to the prime minister criticizing Home Secretary Suella Braverman for singling out LGBTQI+ persons in her September 26 speech, in which she implied that “simply being gay, or a woman, and fearful of discrimination in your country of origin” was not sufficient to qualify for protection.

Availability of Legal Gender Recognition: By law, persons could change their legally recognized sex by obtaining a Gender Recognition Certificate (GRC) that entitled the holder to be treated for legal purposes in line with their acquired sex. Obtaining a GRC required a person to have lived in their acquired gender for at least two years and to have the intention of doing so for the rest of their life. The Scottish government legally challenged a UK government block on legislation passed in December 2022 by the Scottish Parliament, which proposed reducing this time to three months for those age at least 18, and six months for persons ages 16 and 17. On December 8, Scotland’s Supreme Civil Court rule that the UK government acted lawfully in blocking the legislation. As of December 14, the Scottish government had not stated whether it would appeal the ruling.

Involuntary or Coercive Medical or Psychological Practices: In April 2022, the government announced plans to ban so-called conversion therapy practices for lesbian, gay and bisexual persons in England and Wales. As of December, however, the government had not yet introduced legislation to outlaw such practices, which prompted criticism from NGOs throughout the

year. According to a survey of LGBTQI+ persons commissioned by the NGO Galop, 18 percent of respondents reported being subjected to someone trying to “change, cure, or suppress their sexual orientation or gender identity.”

There were no reports of surgeries performed on children or nonconsenting adult intersex persons. The government and medical associations made efforts to limit these practices.

Restrictions of Freedom of Expression, Association, or Peaceful Assembly:

There were no restrictions on freedom of expression, association, or peaceful assembly for those speaking out about or covering LGBTQI+ topics in the media or on the ability of LGBTQI+ organizations to legally register or convene events.

Persons with Disabilities

The law prohibited discrimination against persons with physical, sensory, intellectual, and mental disabilities. The Equality Act 2010 required changes or “reasonable adjustments” to be made to ensure disabled persons could access education, employment, health services, housing, and “goods and services” including shops, banks, cinemas, public buildings, transportation, and it placed a legal duty on persons and organizations. If a person or body refused, a discrimination claim could be made under the Equality Act. Some persons with disabilities faced discrimination in employment and

occupation. The number of reported hate crimes against individuals with disabilities remained consistent with the previous year.

Bermudian law protected the rights of persons with disabilities in the workplace. The law did not include any protection from discrimination on mental health grounds.

In August the EHRC submitted a report to the United Nations warning that many disabled persons faced discrimination in the country and that their situation was worsening due to cost-of-living pressures. According to the report, the government had made little or no progress to address 11 policy recommendations identified by the United Nations in 2016 on issues including but not limited to access to justice and accessible communication. The commission reported that disabled persons continued to be at disproportionately high risk of poverty and low income, and had poor access to public services.

Children with disabilities attended school through secondary education at similar rates to children without disabilities. The law required all publicly funded preschools, nurseries, state schools, and local authorities to try to identify, help assess, and provide reasonable accommodation to children with “special educational needs or disabilities.”

The EHRC provided legal advice and support to individuals with disabilities and a hotline. It conducted formal investigations, required persons or

organizations to adopt action plans to ensure compliance with the law, and applied for injunctions to prevent acts of unlawful discrimination.

Other Societal Violence or Discrimination

Hate speech, notably against Muslims, in some traditional media, particularly tabloid newspapers, was a problem, with dissemination of biased or ill-founded information. Online hate speech also was a problem. There were instances of societal violence against Muslims and attacks on mosques. After the October 7 terrorist attacks in Israel, Islamophobic offenses increased, and London police recorded a 140 per cent increase in Islamophobic offenses compared with the same month in 2022.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The law provided for the right of workers to form and join independent trade unions, bargain collectively, and conduct legal strikes. The law did not cover workers in the armed forces, public-sector security services, police forces, and freelance or temporary work. In July the Strikes (Minimum Service Level) Act 2023 became law. Under the new law, trade unions were compelled to provide minimum service levels in the health, fire and rescue, education, transport, nuclear decommissioning, and border security sectors.

The government held public consultations about the new law throughout the year.

The government effectively enforced laws protecting freedom of association, collective bargaining, and the right of workers to engage in a strike or other industrial action. Employers generally respected freedom of association and the right to collective bargaining. Most trade union rights applied only to recognized, independent trade unions. A trade union could be certified as independent if it was not employer-linked. The trade union was recognized by the employer if there was a recognition agreement between trade union and employer for collective bargaining purposes. Workers were entitled to have a trade union recognized where most of the workers concerned supported the union, as evidenced by a ballot showing a majority of workers voted and at least 40 percent of those eligible to vote supported recognition. There was a statutory procedure for trade union recognition (and derecognition) applicable to companies with more than 21 workers. A statutory recognition agreement limited negotiations to pay (not including pensions), hours of work, and holidays.

The law prohibited antiunion discrimination and protected employees from unfair dismissal while striking for up to 12 weeks, provided the union complied with the legal requirements governing such industrial action. Under the law, employers were not allowed to dismiss an employee for being or wanting to be a trade union member.

The law required a supportive ballot before industrial action by a trade union. A ballot was regarded as supportive if at least 50 percent of those who were entitled to vote did so, and if the majority of those votes were in favor of industrial action. For workers in “important public services,” defined as health services, education for those younger than 17, fire services, transport services, nuclear decommissioning and the management of radioactive waste and spent fuel, and border security, a ballot was deemed supportive only if at least 40 percent of eligible voters voted in favor of industrial action. After securing a supportive ballot, the trade union was required to provide the employer with 14-days’ notice before strike action was taken. The members’ agreement to a union’s proposed industrial action automatically expired six months after the date of the ballot. If nonunion members conducted a strike, they were protected from dismissal and had the same rights as union members, if the industrial action were lawful.

Industrial action, including strike action organized by a trade union, was legal provided conditions were met. According to the International Trade Union Confederation (ITUC), the ability to strike in the country was “limited” due to prohibitions against political and solidarity strikes, lengthy procedures for calling strikes, loopholes that allowed employers to use recruitment agencies to replace strikers, and the ability of employers to seek injunctions against unions before a strike had begun if the union did not observe all legal steps in organizing the strike. In addition, the ITUC noted

the six-month mandate that arose from a union vote to strike, whether negotiations had concluded or not, placed undue burdens on unions and their members.

Penalties for violations of freedom of association, collective bargaining, and the ability to strike were commensurate with those for analogous crimes such as civil rights violations, and were regularly applied against violators. Inspection was sufficient to enforce compliance. Remedies were limited in situations where workers faced reprisal for trade union activity. Workers could make a claim to an independent employment tribunal in instances of unfair dismissal, discrimination at work, breach of contract, or unauthorized pay deductions. Workers claiming unfair dismissal for trade union activities, acting as a workers' representative, and whistleblowing were able to continue paid employment (known as interim relief) until the case was decided by the employment tribunal.

The Advisory, Conciliation, and Arbitration Service (ACAS), primarily funded by the Department for Business and Trade, worked to help employees and employers better adhere to collective bargaining and other workplace laws and to improve workplace relationships. It provided free advice to employers, employees, and their representatives, as well as dispute resolution services. If ACAS was not able to settle a dispute, a claim could be made at an employment tribunal and, in some cases, be eligible for interim relief.

b. Prohibition of Forced or Compulsory Labor

See the Department of State's *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

c. Prohibition of Child Labor and Minimum Age for Employment

The law prohibited all the worst forms of child labor. The law prohibited the employment of children younger than 13 with exceptions for sports, modeling, and paid performances, which could require a child performance license, depending on local bylaws. Children younger than 18 were prohibited from working in hazardous environments or after 7 p.m. The law prohibited those younger than 16 from working in an industrial enterprise, including transportation or street trading. Children's work hours were strictly limited and could not interfere with school attendance. Different legislation governed the employment of persons younger than 16 and, while some laws were common across the UK, local bylaws varied. Some local bylaws required children between the ages of 13 and 16 to obtain a work permit from local authorities. The local authority's education and welfare services had primary responsibility for oversight and enforcement of the permits.

The Department for Education had primary regulatory responsibility for

child labor, although local authorities generally handled enforcement.

Penalties were commensurate with those for equally severe crimes.

Penalties were regularly applied against violators.

In Bermuda children younger than 13 could perform light work of an agricultural, horticultural, or domestic character if a parent or guardian was the employer. Schoolchildren could not work during school hours or more than two hours on school days. No child younger than 15 could work in any industrial undertaking, other than light work, or on any vessel, other than a vessel where only family members worked. Children younger than 16 could not work at night; children aged 16 to 18 were allowed to work until midnight under certain conditions; and employers were required to arrange for safe transport home for girls aged 16 to 18 working until midnight. Penalties were commensurate with those for similar crimes, and inspection was sufficient to enforce compliance. The government effectively enforced the law. The Bermuda Police Service reported no cases of child labor or exploitation of children during the year.

There were no confirmed reports during 2022 of the worst forms of child labor in the British Overseas Territories, but gaps in the law made children vulnerable. The British Overseas Territories of the Falkland Islands (Islas Malvinas), Montserrat, and Saint Helena, Ascension, and Tristan da Cunha did not have functioning labor inspectorates to enforce labor laws. There were legislative gaps in the prohibition of trafficking in children for labor

exploitation in Saint Helena, Ascension, and Tristan da Cunha. While criminal laws prohibited trafficking in children for sexual exploitation, they did not address trafficking in children for labor exploitation. Laws did not exist in Monserrat or the Falkland Islands (Islas Malvinas) regarding the use of children in drug trafficking and other illicit activities.

d. Discrimination (see section 6)

e. Acceptable Conditions of Work

Wage and Hour Laws: The law provided for a National Living Wage for workers aged 23 and over and a National Minimum Wage for workers of at least school-leaving age until age 22. Both wages were above the poverty level.

The law limited the workweek to an average of 48 hours, normally averaged over a 17-week period. The law did not prohibit compulsory overtime, but it limited overtime to the 48-hour workweek restriction. The 48-hour-workweek regulations did not apply to senior managers and others who could exercise control over their own work hours. There were also exceptions for the armed forces, emergency services, police, domestic workers, sea and air transportation workers, and fishermen. The law allowed workers to choose to work more than a 48-hour week; this was called an “opt out” of the 48-hour limit. An individual could “opt out” for a certain period or indefinitely; the “opt out” was required to be voluntary,

and an employee could not be fired or treated unfairly for refusing. The employee could cancel an “opt out” agreement at any time, by giving seven days’ notice. There were exceptions for airline staff, delivery drivers, security guards, and workers on ships or boats.

Bermuda implemented its first minimum wage on June 1 with an hourly wage of 16.40 Bermuda Dollars (\$16.4). The Employment Minimum Hourly Wage Order was tabled on March 2 by the Minister of Economy and Labour. The order set the minimum hourly wage and provided a hybrid payment structure for employees who received gratuities, commissions, and service charges. If basic wages did not equal the minimum hourly rate for employees who received these forms of compensation, the employer would be liable for the difference.

The Bermuda Department of Labour enforced any contractually agreed wage and hour and standards.

Occupational Safety and Health: The government set appropriate occupational safety and health (OSH) standards. The law stipulated employers could not place the health and safety of employees at risk. The Health and Safety Executive (HSE) was responsible for identifying unsafe situations, not the worker, and inspectors had the authority to conduct unannounced inspections, levy fines, and initiate criminal proceedings. The government proactively identified unsafe conditions. By law, workers could remove themselves from situations that endangered health or safety

without jeopardy to their employment, and authorities effectively protected employees in this situation. Alleged violations of OSH standards were common in the construction, manufacturing, and agricultural, forestry, and fishing sectors.

The Bermuda Department of Labour and Training enforced OSH standards. Regulations enforced by the department extensively covered the safety of the work environment, occupational safety, and health standards and were appropriate for the main industries.

Wage, Hour, and OSH Enforcement: The government effectively enforced minimum wage, overtime, and OSH laws. His Majesty's Revenue and Customs (HMRC) enforced wage payments. The HSE enforced maximum working hours. The number of labor inspectors was sufficient to enforce compliance. The HMRC and the HSE could make unannounced inspections and initiate criminal proceedings. Inspections were sufficient to enforce compliance.

Penalties for violations were generally commensurate with those for similar crimes such as fraud or negligence. Penalties were regularly applied against violators. Although criminal enforcement was available, most minimum wage noncompliance was pursued via civil enforcement through the courts. The HSE reported violations of wage, hour, or overtime laws were common in the agriculture, chemicals, construction, fairgrounds and theme parks, film and theater, logistics and transport, manufacturing, mining, energy,

sports and leisure, utilities, and waste and recycling sectors.

The HSE effectively enforced occupational health and safety laws in all sectors including the informal economy. Fines for violations were commensurate with those for similar laws. HSE inspectors also advised employers on how to comply with the law. Employers could be ordered to make improvements, either through an improvement notice, which allowed time for the recipient to comply, or a prohibition notice, which prohibited an activity until remedial action was taken. The HSE issued notices to companies and individuals for breaches of health and safety law. The notice could involve one or more instances when the recipient failed to comply with health and safety law, each of which was called a “breach.” The HSE prosecuted recipients for noncompliance with a notice while the Crown Office and Procurator Fiscal Service prosecuted similar cases in Scotland. According to a government report published in June, 9 percent of the UK adult population participated in the informal sector in 2022.

In Bermuda penalties enforced by the Department of Labour and Training were commensurate with those for similar violations and were regularly applied against violators.